

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

Mr. Justice Irfan Saadat Khan
Mr. Justice Aqeel Ahmed Abbasi



Civil Appeals Nos.13-K and 14-K of 2020

(On appeal from the judgment dated 17.04.2017 passed by the High Court of Sindh, Bench at Sukkur in C.R.As. No.122 & 123/2006)

Mst. Addan (deceased) through her L.Rs.

...Appellants

Versus

Province of Sindh through Deputy Commissioner, Khairpur and others

...Respondents

For Appellants:

Mr. Iftikhar Javed Qazi, ASC
Mr. Ghulam Rasool Mangi, AOR

For Respondent Nos.1-3:

Mr. Hakim Ali Shaikh, Addl. AG Sindh
Mr. Sagheer Abbasi, Addl. AG Sindh
Mr. Muhammad Iqbal Chaudhry, AOR

For Respondent Nos.4:
(i), (iii) to (vii)

Mr. Bhajandas Tejwani, ASC
Mr. Manoj Kumar, ASC
Mr. Muhammad Iqbal Chaudhry, AOR

Assisted by:

Ms. Zainab Bashir, Judicial Law Clerk,
Supreme Court of Pakistan.

Date of Hearing:

03.09.2025

JUDGMENT

AQEEL AHMED ABBASI, J.- The instant Civil Appeals with the leave of this Court have been filed against the common judgment dated 17.04.2017, passed by the High Court of Sindh, Sukkur Bench whereby Civil Revision Applications Nos.122 and 123 of 2006, filed against the consolidated judgment dated 15.08.2006 and Decree dated 18.08.2006, passed by the learned 1st Additional District Judge, Khairpur, were allowed and the consolidated judgments of the Courts below were set aside. Consequently, suit No. 22 of 1998 was decreed and Suit No. 48 of 1998 was dismissed.

2. Brief facts of the case as recorded by the High Court of Sindh, Sukkur Bench, Sukkur are that respondent No. 4 in the instant appeals namely Jumo alias Juman was owner of agricultural land to the extent of 9-00 (66 paise) share in different survey numbers and also co-sharer in different survey numbers to the

extent of 1-01 share (total share is 10-1 acres) in Deh Deparja, Taluka Mirwah, District Khairpur. The appellant Mst. Addan and her sisters namely Mst. Koral, Mst. Makhan and Mst. Subhan Khatoon gave their shares from the said land to respondent No. 4 as gift through Entry No. 34 dated 06.05.1971 before Mukhtiarkar in presence of witnesses, whereas, the appellant Mst. Addan took another land from respondent No. 4 as exchange gift through Quboliat Nama dated 13.04.1970. Respondent No. 4 was in peaceful possession of the said land since last 30 years and cultivating the same and paying land revenue. The appellants tried to dispossess respondent No.4 from the suit land but failed and one week back moved application to the Assistant Commissioner for cancellation of entries, which act was illegal and therefore respondent No.4 filed Suit No.22 of 1998 against the appellants, wherein, the respondent claimed the following reliefs: -

- a) That the Hon'ble court may be pleased to declare that the plaintiff is legal, lawful and rightful owner of the suit land and Entry Nos.33 and 34 are legal and lawful and defendants have no right or any concern with suit land.
- b) To issue permanent injunction restraining the defendants not to dispossess the plaintiff from suit land not interfere with rights title and possession of the plaintiff and restrain the defendant No.2 to cancel the Entry Nos. 33 and 34 in favour of plaintiff in respect of suit land and not interfere in any manner till the decision of suit.
- c) To award costs of the suit.
- d) Any other relief deemed fit and proper by this Hon'ble Court due to circumstances of the case.

The appellants filed written statement on 16.03.1998, wherein, they raised legal objections regarding limitation and maintainability of suit. On merits, it was pleaded that respondent No.4 was not owner of the suit land but was in illegal possession and Revenue Entry Nos. 33 and 34 are bogus. It was further pleaded that Mst. Addan and her sisters had neither gifted their shares in the suit land to respondent No.4 nor executed any Quboliat Nama in favour of respondent No.4. It was further pleaded that the documents produced with the plaint were bogus and did not confirm title upon respondent No.4. In the end, they prayed for dismissal of the said suit. The appellants after about six months of filing their written statement in Suit No.22 of 1998, filed Suit No. 48 of 1998 against respondent No.4 and others for declaration, joint possession, *mesne*

profits and injunction, wherein, it was pleaded that the suit land was the original property of Sher Muhammad, father of respondent No.4 and appellant Mst. Addan and upon his death, his entire property was devolved upon his legal heirs namely one son and four daughters including the appellant Mst. Addan and respondent No.4. It was further pleaded that respondent No.4 being the male member of the family used to look after the entire property on behalf of other shareholders and used to give them their due shares, which continued till the end of 1995 and thereafter respondent No.4 stopped distributing the income of suit land amongst the shareholders. It was further pleaded that upon receipt of notice of Suit No.22 of 1998, the appellants came to know that respondent No.4 in collusion with the Revenue Department committed fraud by putting Entry Nos. 33 and 34, which were fraudulent and bogus and therefore the appellants filed Suit No. 48 of 1998 against respondent No.4 and others, wherein, the appellants claimed the following reliefs: -

- a) By passing decree it be declared that Entries Nos.33 and 34 dated 06.05.71 of Deh Jo Form No. VII of Deh Deparja, Taluka Mirwah is illegal and fraudulent, never executed by plaintiffs and be declared null and void.
- b) That *mesne* profits be awarded.
- c) That plaintiffs be put in joint possession of suit land to the extent of 0-17 paisa share.
- d) That permanent injunction be issued restraining the defendants not to interfere in the rights and title of plaintiffs over suit land.
- e) Costs of the suit be awarded.
- f) Any other relief.

Respondent No.4 filed written statement on 08.02.1999, wherein, he raised legal objections regarding limitation and maintainability of suit. On merits, it was pleaded that the suit land was not the ancestral property of late Sher Muhamad but respondent No.4 took the said land from the Barrage Department in the name of his father Sher Muhammad and spent huge amount upon the suit land for cultivation purposes. It was further pleaded that respondent No.4 was in possession of the suit land and paying land revenue and the appellants have no right in the suit land. In the end, respondent No.4 prayed for dismissal of said suit. The official respondents

neither filed written statements nor any application for the rejection of plaint in any of the suits. On 15.03.1999, both the said Suits Nos. 22 & 48 of 1998 were consolidated and Suit No.22 of 1998 was ordered to be the leading suit.

3. The following consolidated issues were framed by the Trial Court: -

- a) Whether either suit is maintainable according to law?
- b) Whether Mst. Addan has executed gift in favour of Jumo alias Juman?
- c) Whether gift deed purported to have been executed by Mst. Addan is legal, valid and binding?
- d) Whether the Quboliat Nama dated 13.04.1970 has been executed by Mst. Addan, if so, its effect?
- e) Whether plaintiffs are entitled to the relief sought?
- f) What should the decree be?

4. Respondent No.4 examined himself as PW-1 (Exhibit 45) and one witness namely Ali Bakhsh as PW-2 (Exhibit-81) and produced documentary evidence (Exhibits 46 to 80). On the other hand, the appellants examined legal heir of Mst. Addan and attorney of other legal heirs namely Muhammad Soomar as DW-1 (Exhibit-83) who produced only power of attorney in his favour as Exhibit-84. However, the official respondents did not produce any evidence. The learned Senior Civil Judge by his consolidated Judgment dated 16.08.1999 dismissed Suit No.22 of 1998 and decreed Suit No.48 of 1998 to the extent of 17 paisa share of Mst. Addan and directed respondent No.4 to put Mst. Addan in joint possession to the extent of her 17 paisa share within 30 days. Against the said consolidated Judgment, Respondent No.4 filed Civil Appeals Nos. 69 and 77 of 1999, which were dismissed by the learned Additional District Judge vide consolidated Judgment dated 15.08.2006. Against the concurrent findings of both the Courts below, Respondent No.4 filed revision applications under Section 115 CPC, before the learned Single Judge of High Court of Sindh, Sukkur Bench. The judgment passed by the learned Single Judge of High Court of Sindh, Sukkur Bench, Sukkur in the above revision applications has been impugned before this Court through instant Civil Appeals.

5. Learned counsel for the appellants has vehemently argued that the impugned judgment whereby the judgments of the two Courts below have been set aside is based on misreading and non-reading of the evidence, therefore, the same is liable to be set aside. It has been contended by the learned counsel for the appellants that the learned Single Judge of the High Court has failed to appreciate that once the mutation of the subject property was challenged by the appellants, the respondent No.4 relying upon such mutations was required to prove such original transaction which resulted into the entry of attestation of such mutation under dispute. It has been further contended by the learned counsel, that the respondent did not examine any witness to prove oral gift and mutation as required under Article 79 of the Qanun-e-Shahadat Order 1984, (“QSO”) therefore, no reliance could be placed on such documents. Per learned counsel, the appellants were entitled to inherit the property left behind by her deceased father (Sher Muhammad), which right could not be denied on the basis of oral assertion of surrender of such right by female in favour of male member of the family. Learned counsel has further argued that there is no limitation in law for a co-sharer in the inherited property to enforce right of inheritance against another co-sharer, therefore, the learned Single Judge of High Court was not justified to hold that claim of the appellants was time barred. Per learned counsel, both the judgments of the Courts below are based upon proper appreciation of evidence and law, therefore, such concurrent findings cannot be set aside by the learned Single Judge of the High Court unless decision of the Courts below was totally illegal or suffered from material irregularities. It has been prayed that the impugned judgment may be set aside and the judgments passed by the Courts below in favour of appellants may be restored. In support of his contentions, the learned counsel for the appellants has placed reliance on the following cases: -

1. Peer Baksh through LRs and others vs. Mst Khanzadi and others (2016 SCMR 1417),
2. Muhammad Iqbal & 5 others vs. Allah Bachaya & 18 others (2006 SCJ 177),
3. Abdul Khaliq (deceased) through LRs vs. Ch. Rehmat Ali (deceased) through LRs and others (2012 SCMR 508),

4. Fazal Akbar vs. Mst. Hussain Pari (PLJ 1982 SC 218),
5. Kanwal Nain and 3 others vs. Fateh Khan and others (PLD 1983 SC 53 FB),
6. Muhammad Akram and another vs. Altaf Ahmad (PLD 2003 SC 688),
7. Rehmatullah and others vs. Saleh Khan and others (2007 SCMR 729),
8. Hasam-ul-Haq vs. Federation of Pakistan and others (2005 SCMR 346)
9. Arshad Khan vs. Mst. Resham Jan and others (2005 SCMR 1859).

6. Conversely the learned counsel for respondent No.4 has vehemently controverted the submissions made by the learned counsel for the appellants and submitted that the consolidated judgment passed by the learned Single Judge of the High Court is based on sound reasoning and proper appraisal of the evidence produced by the parties as well as lawful interpretation of the provisions of law attracted in the instant case. It has been contended by the learned counsel that both the Courts below did not examine the documentary evidence and the lawful entries relating to mutation of the subject land in favour of respondent No.4 by the Revenue Authorities, whereas, in view of mere allegations of fraud, without any evidence to this effect, the lawful presumption attached to the public record of revenue relating to genuineness of the Revenue entries cannot be disbelieved nor can be ignored while deciding the *lis* in hand for the reasons that the subject land was not part of the estate left behind by the deceased (Sher Muhammad). It has been further contended by the learned counsel that the judgments passed by the two Courts below are in violation of mandatory provisions of Order XX Rule 5 CPC, hence, cannot be considered as reasoned judgments for the reason that the learned Senior Civil Judge has failed to decide the point of limitation, and mis-interpreted the law regarding registration of gift, also misread the evidence of the appellants and ignored the evidence of the private respondents. Learned counsel has contended that Suit No.48/1998 filed by the appellants was not maintainable for being barred by time under Section 3 of the Limitation Act 1908, as according to learned counsel, the cancellation of documents i.e. the gift and revenue

record was sought after the lapse of about 27 years. Learned counsel in this regard has placed reliance on State Bank of Pakistan v Imtiaz Ali khan (2012 SCMR 280), Ayaz Ahmed Soomro through L.Rs v Rasheed Rehman through his L.Rs and others (PLJ 2025 Civil (Note) 10) and Noor Din and another v Additional District Judge Lahore and others (2014 SCMR 513). Per learned counsel, in order to wriggle out from this objection, the appellants misled the Court while treating the subject land as part of inherited property of late Sher Muhammad, whereas, the subject land was already gifted in favour of the respondent No. 4 by all the sisters including the appellant namely Mst. Addan. Learned counsel while referring to provisions of Order XX Rule 5 CPC has submitted that since the consolidated issue No. 1 was formulated to decide the maintainability of both the suits therefore, it was the duty of the Trial Court as well as the Appellate Courts to record their findings on the issue of maintainability, particularly, the issue of limitation involved in instant matter which has not been done, therefore, both the judgments and decree passed by both the Courts below are illegal. Learned counsel has placed reliance on Aamar Tufail vs. Muhammad Sadiq (2006 CLD 91) and National Insurance Corporation vs. Al-Khan Construction Co. (2006 YLR 108). Per learned counsel, the learned Single Judge of the High Court while hearing the revision applications has rightly observed that it was the duty of the Courts below to examine the maintainability of both the suits in the light of the relevant facts and law applicable there and has been pleased to hold that the suit filed by the appellants seeking declaration and cancellation was hopelessly barred. It has been further argued by the learned counsel for the respondents that no findings or any valid reasoning was recorded by the Courts below relating to gift and mutation in the revenue record in favour of respondent No.4 whereas, on mere assumptions and conjunctures, it was observed that a gift was not valid for the reason that there was no acceptance contrary to the facts and the admitted documents. Moreover, the possession of the subject land was handed over to the respondent which fact alone is the proof of acceptance of the gift. Per learned counsel, except appellant none of the sisters have come forward to allege fraud against respondent No.4 in respect of the subject land, which aspect of the matter has been ignored by both the Courts below. In this regard learned counsel has referred to revenue record in the shape of Form No. VII wherein the statement of the four sisters

including the appellant Mst. Addan is available alongwith signature/thumb impression (Exhibit 47 available at page-94, 95 and 95-A of the file). Learned counsel has submitted that the entire case of the appellants is based upon solitary evidence of Muhammad Soomar who at the time of gift was a minor boy (8 years), who otherwise could not produce any documentary evidence or any independent witness to support the allegation of fraud in respect of the revenue record and the respective entries relating to subject land. While concluding his submissions learned counsel for the respondents has supported the exercise of revisional jurisdiction by the learned Single Judge of the High Court while passing the impugned judgment and submitted that in case of grave illegality, misleading and non-reading of the evidence, the Revisional Court has the authority to set aside the findings of the Courts below keeping in view the available record and the evidence produced by the parties. It has been prayed by the learned counsel that both the Civil Appeals No. 13-K & 14-K/2020 may be dismissed and the impugned judgment dated 17.04.2017 passed by the learned Single Judge of the High Court be maintained. In support of his contentions, the learned counsel has placed reliance in the following cases:

1. Nazim-ud-Din and others vs. Sheikh Zia-ul-Qamar and others (2016 SCMR 24)
2. Nabi Bakhsh vs. Fazal Hussain (2008 SCMR 1454)
3. Nazir Ahmad and another vs. M. Muzaffar Hussain (2008 SCMR 1639)
4. Malik Muhammad Khaqan vs. Trustees of the Port of Karachi (KPT) and another (2008 SCMR 428)
5. Mubarik Ali through L.Rs vs. Amroo Khan through L.Rs (2007 SCMR 1714)
6. Abdul Sattar vs. Mst. Anar Bibi and others (2007 PLD SC 609)
7. Ghulam Muhammad and 3 others v. Ghulam Ali (2004 SCMR 1001)

7. Similarly, both the learned Additional Advocates General namely Mr. Hakim Ali Shaikh and Mr. Sagheer Abbasi, representing the official respondents have supported the impugned judgment passed by the learned Single Judge of the High Court and contended that in view of the official record available in the shape of

statement of donors and mutation in the revenue entries as well as the possession of the subject land on the basis of gift in favour of respondent No.4, the appellants have failed to make out any case on the allegation of fraud particularly, in the absence of any evidence or material produced before the Courts below in this regard. It has been submitted that the Courts below have failed to appreciate the relevant facts and the law, particularly, the law relating to limitation and maintainability of Suit No.48/1998 filed by the appellants, which *prima facie*, was not maintainable on the point of limitation, whereas, no consequential relief was sought for cancellation of the revenue entries.

8. We have heard the learned counsel for both the parties, perused the record with their assistance and have also gone through the impugned judgment passed by the learned Single Judge of the High Court while exercising revisional jurisdiction and the judgments of the Courts below as well as the law applicable to the facts of the instant case.

9. Perusal of the impugned judgment passed by the learned Judge of Sindh High Court, reflects that, having examined the evidence produced by both the parties in detail and the conclusion drawn by the Courts below, the learned Single Judge of the High Court has been pleased to observe that both the Trial Court as well as the Appellate Court have failed to examine the maintainability of the suits, inspite of the fact that while framing the consolidated issues in both the suits, the issue No.1 was related to maintainability of the suits. For seeking cancellation of documents, the period of limitation has been provided under Article 91 of the Limitation Act, 1908. Since the appellants were seeking declaration against the gift and the mutation in the revenue record in favour of respondent No. 4, therefore, it was the duty of the court to examine period of limitation in terms of Article 91 of the Limitation Act, 1908 as the suit No. 48/1998 was filed by the appellants after 27 years, hence, the suit was not maintainable for being barred by law of limitation. Reliance in this regard can be placed on the case of Government of NWFP and others vs. Akbar Shah and others (2010 SCMR 1408) wherein, it has been held as under: -

“6...It is the obligation of the Court to look into the point of limitation without there being objection of any party in terms of section 3 of the Limitation Act, 1908.”

As per findings of the learned Single Judge, it has been declared that both the Courts below did not dilate upon the maintainability of the suits and thus violated the provisions of Order XX Rule 5 CPC, and Order XLI Rule 31 CPC, which requires that a Court shall record its finding on each and every issue framed, and the points for determinations separately, through well-reasoned judgment. Reliance in this regard can be placed on the case of Raja Muhammad Afzal vs. Ch. Muhammad Altaf Hussain and others (1986 SCMR 1736) wherein, it has been held as under: -

“Judgment’ has been defined in section 2, clause 4 (9) of the Civil Procedure Code as ‘judgment’ means the statement given by the Judge of the grounds of a decree or order’ and Order has been defined in clause 14 of the same section as ‘formal expression of any decision of a civil Court which is not a decree’. Further, Order XX, Rule 4, sub-rule (2) prescribes that judgment of Courts other than the Court of a small causes ‘shall contain a concise statement of the case, the points for determination, the decision thereon, and the reasons for such decision’. Rule 5 of the same Order provides ‘in suits in which issues have been framed the Court shall state its finding or decision with reasons therefore upon each separate issue, unless the finding upon anyone or more of the issues is sufficient for the decision of the suit.’”

(emphasis provided)

Further reliance can be placed on Syed Iftikhar-ud-Din Haidar Gardezi and 9 Others vs. Central Bank of India Ltd. Lahore and 2 Others (1996 SCMR 669) wherein, it has been held as under: -

“This case is also hit by rule 31 as all the points which were argued and relied upon by the learned counsel for the appellants were not considered for their proper determination on the basis of available evidence. The Civil Courts had to decide the disputes issue-wise as far as it would be practicable in the given situation in each case. It is not the case of learned counsel for respondents that issues were abandoned with consent of learned counsel for the appellants. In case, learned counsel for the parties agree that specified issues alone should be dealt with, then, of course, Courts need not enter into discussion on other issues for their decision. No such consent was, admittedly, obtained in this case when the appeal was decided. We would also hold that evidence of Saeed Ahmad D.W. was not considered by the High Court for the just decision of the appeal. This being so, the appeal of the appellants shall be deemed to be still pending decision before the High Court.”

(emphasis provided)

Reference can also be made to the case of Ali Muhammad vs. Muhammad Hayat and Others (1982 SCMR 816) and Nasir Abbas vs. Manzoor Haider Shah (PLD 1989 SC 568).

10. Perusal of the record further reveals that despite framing of legal issue as to maintainability of either suit both the Courts below did not record any findings in this regard, which amounts to material irregularity and, therefore, failed to exercise the jurisdiction so vested in both the courts. The learned Single Judge of the High Court while having taken cognizance of this aspect of the matter in detail, was, therefore, justified to exercise the jurisdiction so vested under Section 115, CPC, and has rightly concluded that Suit No.48/1998, filed by the appellants seeking declaration to the effect that the gift and the revenue entries No.33 & 34 pertaining to the subject land, are illegal, by alleging fraud, is liable to be dismissed on account of limitation as the suit was barred by 27 years from the date of gift and mutation in the revenue record as entry No.33 & 34. It has been further observed by the learned Single Judge that suit was otherwise liable to be dismissed for the reason that merely seeking declaration, joint possession and *mesne* profit alongwith injunction was sought by the appellant in her suit No.48/1998, whereas, no consequential relief i.e. seeking cancellation of the gift or revenue entries, was made. As per proceedings before the Courts below, it has transpired that the appellant in order to wriggle out from explaining the delay of more than 27 years in filing the suit in the above fora attempted to take a stance that since the appellant is seeking right of inheritance as co-sharer of the subject land, therefore, no limitation would run against such declaration. However, the record reveals that admittedly, the subject land is in constant possession of the respondent No.4 since the gift is in his favour and mutation is in his name in the revenue record against the entries No.33 & 34 dated 06.05.1971 of Deh Jo Form No. VII of Deh Deparja, Taluka Mirwah. Moreover, the appellant did not produce any documentary evidence nor examined any confidence inspiring independent witnesses to support the allegation of fraud, except son of the appellant i.e. Muhammad Soomar, who while recording his statement on oath, neither referred to any material nor produced any evidence to support the allegation of fraud, whereas, no particulars whatsoever were given, nor any

material was referred to by the appellant to this effect, thus failed to make out a case of alleged fraud. It is settled legal position that the person alleging fraud has to give particulars of the fraud and also to provide sufficient material and the evidence to support such allegation, whereafter, the burden shifts upon the respondent to prove the genuineness of the transaction allegedly based on fraud. Reliance in this regard can be placed on the case of Khan Muhammad vs. Muhammad Din through LRs (2010 SCMR 1351) wherein, this Court has been pleased to hold as under: -

“5...It is well settled principle of law that initial burden to prove execution of documents is on party which is relying on documents. Once this onus is discharged, burden to prove factum of fraud or undue influence or genuineness of documents shifts to party which alleges fraud...”

11. In the instant case, in the absence of any particulars, material or the evidence to support the allegation of fraud, the lawful presumption attached to the official record in the shape of gift, statement of donors and continued possession of the subject land with respondent No.4 cannot be ignored. Reliance in this regard can be placed on the case of Aamir Afzal and another vs. S. Akmal (deceased) through L.Rs. and 2 others (2024 SCMR, 1649) wherein, this Court has been pleased to hold as under: -

“5. The High Court, while exercising its revisional jurisdiction under section 115 of the CPC, has set aside the concurrent findings of facts and law rendered by two competent Courts. In the opinion of the High Court, the onus of proving the execution of the Memorandum was on the appellants and they had failed in discharging such onus. It is noted that rule 4 of order VI of the CPC explicitly provides that in all cases in which the party pleading relies, inter alia, on fraud, shall state in the pleadings particulars with dates and items if necessary. It is settled law that the parties are required to plead all facts that may constitute a cause of action for any relief or in defence, as the case may be. A party which alleges a fact has to prove the same and the ingredients of fraud have to be narrated and stated by giving particulars thereof. It is settled law that fraud must be specifically alleged and its particulars unequivocally stated. This Court has consistently held that general allegations, however strong the words may be, are insufficient to constitute an assertion of fraud and that vague allegations in a plaint are not enough...”

(emphasis provided)

Similarly, reliance can also be placed on the case of Taj Muhammad Khan through L.Rs. and another vs. Mst. Munawar Jan and 2 others

(2009 SCMR, 598) wherein, this Court has been pleased to hold as under: -

“6...In another case Abdul Karim v. Muhammad Akram, 1995 CLC 130, a legal proposition has been laid down that he who alleges a fact has to prove the same and the ingredients of fraud have to be narrated and stated by the person alleging the same. Further reference can be made to the case of Tom Boevey Barrett v. African Products, Ltd. AIR 1928 PC 261, wherein it was held that the fraud must be definitely alleged and its particulars unequivocally stated. In another case titled Ghulam Shabbir v. Nur Begum PLD 1977 SC 75, A Full Bench of this Court headed by Mr. Justice Muhammad Yaqub Ali, the then Chief Justice, laid down that in pleadings general allegations, however, strong may be the words in which they are stated, are insufficient even to amount to an averment of fraud, meaning thereby vague allegations in the plaint are not enough. In Banwari Lal and others v. Shaikh Shukrullah and others, AIR 1940 Patna 204, it was observed that a litigant to prefer the charge of fraud should place specific details thereof. The same view was adopted in case of Mst. Sahib Noor v. Haji Ahmad 1988 SCMR 1703, observing that where charges of fraud are intended to be made full particulars thereof ought to be given in the pleadings, either as originally framed or as amended for that purpose. In Muhammad Umar v. Muqarab Khan and another 1968 SCMR 983, where in the plaint neither the particulars of fraud had been mentioned nor evidence led in support thereof, the suit was dismissed and this Court refused leave to appeal. The onus to prove fraud and misrepresentation was on the plaintiffs/petitioners who have miserably failed to discharge the same by producing sufficient convincing evidence...”

12. Moreover, the acceptance of gift can be express or implied and it can be seen from the conduct of donor and donee as in the instant case, respondent No.4 in pursuance of gift had taken over the possession soon thereafter, which fact has remained undisputed throughout before the Courts below as well as before the learned Single Judge or before this Court. Reliance in this regard can be made to the case of Maulvi Abdullah and others vs. Abdul Aziz and others (1987 SCMR 1403) wherein it has been held as under: -

“...Although no reference was made to section 129 of the Transfer of Property Act, yet it was held after discussing the other provisions of the Transfer of Property Act and Registration Act that a gift by a Muslim would be complete even if there is no writing; and, it depends, for its validity, upon: (1) a declaration of gift by the donor; (2) acceptance of gift expressly or impliedly by or on behalf of the donee, and (3) delivery of possession of the subject-matter by the donor to the donee. If these three conditions are complied with the gift is complete. Registration of the document will not be helpful if either of the aforementioned conditions are not

satisfied. A written instrument in any case would not create a gift but is a mere evidence of the gift and as such would not in the case of a Musalman require registration. The gift was, therefore, held as complete under the Muslim Law and as such operative notwithstanding the non-registration of the gift deed itself...”

(emphasis provided)

The respondent No.4 while producing above documents and having recorded statement on oath, which could not be disproved by the appellants in cross-examination, discharged the onus of proof regarding validity of gift and mutation in revenue record in his favour. Whereas, the appellants miserably failed to disclose the particulars and refer to any confidence inspiring material or evidence to support the allegations of alleged fraud.

13. Without prejudice to hereinabove factual and legal position, it will not be out of place to observe that in terms of Article 49 of QSO, long standing entries in revenue record especially in register of record of rights carry presumptions of truth and cannot be controverted by mere oral evidence unless proved otherwise by sufficient and convincing evidence. Reliance in this regard can be placed on the case of Mazloom Hussain Versus Abid Hussain and 4 others (PLD 2008 SC 571) wherein, it has been held as under: -

“11. Where a presumption of truth is attached to a document, it cannot be discarded unless proved otherwise by convincing and cogent evidence and the burden of proof that the entries in the record of rights are wrong, is on the party who alleges it. Reliance can be placed in this context on the cases of Sundar Singh v. Chhajju Khan AIR 1934 Lahore 309 and The Evacuee Trust Property Board and others v. Haji Ghulam Rasul Khokhar and others 1990 SCMR 725.”

Further reliance in this regard can be placed on the case of Mehr Khan and others Versus Mst. Basaee and others (PLD 2008 SC 612) wherein, it has been held as under: -

“7... The long-standing entries in the Revenue Record specially in the Register of Record of Rights do carry presumption of the truth and cannot be controverted by mere oral evidence unless proved otherwise by sufficient and convincing evidence as laid down in the cases of Hakim Khan. v. Aurangzeb & another (1979 SCMR 625), Sundar Singh v. Chhajju Khan (AIR 1934 Lahore 309) and the Evacuee Trust Property Board and others v. Haji Ghulam Rasool Khokhar and others (1990 SCMR 725). The plaintiffs-respondents have successfully proved their case. The documentary evidence containing the entries qua the appellants have not been controverted by the appellants. They kept

silent over the right and remained in a State of dormancy for such a long time.”

(emphasis provided)

14. As a sequel of hereinabove facts and the law attracted in the instant matter, we are of the firm view that the learned Single Judge of High Court of Sindh after careful scrutiny of the facts and evidence produced by the parties, and having proper understanding of the legal positions as emerged in the case has rightly held that the appellants have failed to establish a case of fraudulent gift and mutation of the subject land in favour of respondent No.4 in the revenue record. Accordingly, the impugned judgment passed by the learned Single Judge of High Court of Sindh, Sukkur Bench, Sukkur is un-exceptionable, therefore, both the appeals being devoid of any merits are hereby dismissed with no order as to cost.

Judge

Judge

Announced in open Court on_____at_____

Judge

Karachi
APPROVED FOR REPORTING
Tanveer Ahmed